

STATE PLAN FOR PROVISION OF
PUBLIC ASSISTANCE UNDER
THE PERSONAL RESPONSIBILITY
AND WORK OPPORTUNITY
RECONCILIATION ACT OF 1996
Effective October 1, 2022

STATE OF CALIFORNIA
Gavin Newsom, Governor

HEALTH AND HUMAN SERVICES AGENCY
Mark Ghaly, Secretary

CALIFORNIA DEPARTMENT OF SOCIAL SERVICES
Kim Johnson, Director

CERTIFICATION

California will operate a program to provide temporary assistance for needy families so that children may be cared for in their own homes or in the homes of relatives; to support parents' self-sufficiency by promoting job preparation, work, and marriage; to prevent and reduce the incidence of out-of-wedlock pregnancies and establish annual numerical goals for preventing and reducing the incidence of these pregnancies; and to encourage the formation and maintenance of two-parent families.

This program is known as the California Work Opportunity and Responsibility to Kids (CalWORKs) Program.

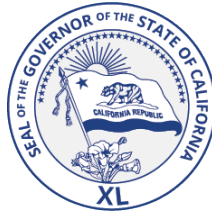
Executive Officer of the State: Gavin Newsom, Governor

The California Department of Social Services (CDSS) is the responsible administering agency for the state's Temporary Assistance for Needy Families (TANF) program. At the state level, CDSS collaborates with the Department of Child Support Services, the Department of Public Health, and the California Department of Health Care Services. CDSS also provides for supervision of local political subdivisions in the administration of the TANF Program. California's 58 local health and human services agencies directly administer the TANF Program locally. CDSS has authority under state law to make rules and regulations that are binding on such political subdivisions. This state plan will be binding on the subdivisions and will be in effect throughout the state.

In administering and operating a program that provides temporary assistance for needy families with minor children under Title IV-A of the Social Security Act, the State:

1. Assures that local governments and private sector organizations:
 - (A) have been consulted regarding the plan and design of welfare services in the state so that services are provided in a manner appropriate to local populations, and
 - (B) have had at least 45 days to submit comments on the plan and the design of such services through the Office of Administrative Law.
2. Operates a Child Support Enforcement program under the state plan approved under Title IV, part D of the Social Security Act.
3. Operates a foster care and adoption assistance program under the State plan approved under Title IV part E of the Social Security Act, and the State takes such actions as are necessary to ensure that children receiving assistance under such part are eligible for medical assistance under the State plan under Title XIX of the Social Security Act.

4. Provides each member of an Indian tribe, who is domiciled in the state and is not eligible for assistance under a tribal family assistance plan approved under section 412, with equitable access to assistance under the state program funded under this part attributable to funds provided by the federal government.
5. Establishes and enforces standards and procedures to ensure against program fraud and abuse, including standards and procedures concerning nepotism, conflicts of interest among individuals responsible for the administration and supervision of state programs, kickbacks, and the use of political patronage.
6. Made available to the public a summary of the state plan.
7. Exercises the Family Violence Option (FVO) in accordance with Title 42 USC 602 (a)(7) and (a)(8). California has established and is enforcing standards and procedures to:
 - A. screen and identify individuals receiving TANF and Maintenance of Effort (MOE) assistance with a history of domestic violence, while maintaining the confidentiality of such individuals;
 - B. refer such individuals to counseling and supportive services;
 - C. provide waivers, pursuant to a determination of good cause, of normal program requirements to such individuals for so long as necessary in cases where compliance would make it more difficult for such individuals to escape domestic violence, unfairly penalize those who are or have been victimized by such violence, or who are at risk of further domestic violence;
 - D. certify that it has established and is enforcing standards and procedures to ensure that applicants and potential applicants for TANF are notified of assistance made available by the state to victims of sexual harassment and survivors of domestic violence, sexual assault, or stalking;
 - E. ensure that case workers and other agency personnel responsible for administering the TANF program are trained in: the nature and dynamics of sexual harassment and domestic violence, sexual assault, and stalking; state standards and procedures relating to the prevention of, and assistance for, individuals who are victims of sexual harassment or survivors of domestic violence, sexual assault, or stalking; and methods of ascertaining and ensuring the confidentiality of personal information and documentation related to applicants for assistance and their children who have provided notice about their experiences of sexual harassment, domestic violence, sexual assault, or stalking; and
 - F. provide information about the options available to current and potential beneficiaries of the Family Violence Option and ensure that case workers and other agency personnel are provided with training regarding relevant state standards and procedures.



In accordance with Title 42 of the United States Code, Section 602, Subsection (a), paragraph (4), I certify that the State of California will administer and supervise the CalWORKs program as outlined in this plan as submitted on this date:

CERTIFIED BY THE CHIEF EXECUTIVE OFFICER OF THE STATE:

December 20, 2022

DATE

A handwritten signature in black ink, appearing to read "Gavin Newsom", written over a horizontal line.

Gavin Newsom, Governor

GENERAL PROVISIONS

- i. **Outline how the state intends to conduct a program designed to serve all political subdivisions in the state (not necessarily in a uniform manner), that provides assistance to needy families with (or expecting) children and provides parents with job preparation, work and support services to enable them to leave the program and become self-sufficient.**

Effective January 1, 1998, California enacted its welfare reform program; California Work Opportunity and Responsibility to Kids (CalWORKs). The CalWORKs program is California's version of the federal Temporary Assistance for Needy Families (TANF) program. CalWORKs serves all political subdivisions (counties) in the state. This program is supervised by the California Department of Social Services (CDSS) and administered by county welfare departments (counties) in accordance with a statewide system of regulations that ensure universal access as well as consistent and uniform eligibility criteria. The program provides temporary cash assistance to meet basic family needs, as well as education, employment, training programs, and supportive services designed to assist the family's move toward self-sufficiency.

Key Features of CalWORKs

CalWORKs seeks to address poverty through an array of services. CalWORKs provides families with basic means of living through services such as cash assistance, immediate needs intervention, and housing support. A "work focused" approach is fostered through the Welfare-to-Work (WTW) aspect of the program, which requires adults, unless exempt, to participate in appropriate WTW activities as a condition of receiving assistance. A work incentive is provided through an initial \$450 earned income disregard and an additional 50 percent (50%) earned income disregard. CalWORKs endeavors to protect children from deep poverty through continued assistance to children when adults are not eligible for the program, fail to meet program requirements or reach the maximum 60-month time limit for cash assistance, as well as by offering a disability-based unearned income disregard of \$600.

CalWORKs is built upon the core concept of local control. As a state-supervised and county-administered program, the 58 counties can tailor their programs to serve their unique and diverse populations. The state allocates block grant funding to counties to help achieve local control through what is known as "The Single Allocation" (the SA).

Eligibility

Upon application for CalWORKs, the parent(s) or caretaker relative of the needy applicant family must complete and sign a statement of facts (SOF) supporting eligibility and attend an eligibility interview either in-person, electronically or telephonically.

Families must meet income and asset tests and children must be deprived of parental support and care due to the incapacity, death, or absence of a parent. If both parents live in the home, the children may also be considered deprived when the principal wage earner is either unemployed or underemployed.

For purposes of CalWORKs, a 'family' is a group of related adults and children living in the same home, whose income and resources are considered when determining eligibility for benefits. A 'family' may consist of a Pregnant Person Only (PPO), meaning a person who is in any stage of their pregnancy, who has no other eligible children living in the home, and whose pregnancy has been verified. PPO applicants may initially satisfy the pregnancy verification requirement by means of a sworn statement or verbal attestation. Applicants who provide a sworn statement or verbal attestation are required to provide medical verification of pregnancy within 30 working days following submittal of the sworn statement/verbal attestation. Family members eligible to receive assistance at the time of application, subject to time limits and program requirements, are considered the Assistance Unit (AU). An AU is defined as a group of related persons living in the home who have been determined eligible for CalWORKs and for whom cash assistance has been authorized. A PPO age 19 or older is eligible to receive assistance at any stage during their pregnancy. PPO teens under the age of 19 and participating in the Cal-Learn Program, which is designed to encourage pregnant and parenting teens to return to and/or stay in high school or its equivalent, are eligible upon verification of pregnancy. Counties may also elect to provide CalWORKs employment services to non-custodial parents (NCPs) using existing funds from their SA and the Expanded Subsidized Employment allocation. An NCP is a parent of a minor child who lives in the same state as the minor child but does not reside in the same household as the minor child (45 Code of Federal Regulations (CFR) section 260.30). For NCPs to be eligible for CalWORKs WTW employment services, the NCP must have established legal parentage for a child who is: 1) receiving aid in a CalWORKs AU; or 2) ineligible for aid (e.g., due to receipt of Supplemental Security Income/State Supplementary Payment [SSI/SSP]) and living with a parent or caretaker receiving CalWORKs assistance.

With the onset of the coronavirus (COVID-19) public health emergency declaration, CalWORKs adopted flexibilities designed to keep county welfare department operations and the public safe while still addressing the needs of our families. These flexibilities were initially enacted through Executive Orders signed by the Governor of California and were later made permanent, effective July 1, 2021:

1. An applicant may complete the affirmation statement on the SOF by means of an oral attestation in lieu of a written attestation when the eligibility interview is completed telephonically and the county welfare department does not have the capability of capturing the telephonic signature. County eligibility staff may approve the application if the family is otherwise eligible and must document in the case file that an oral attestation by the applicant was made. The county must send the completed SOF to the applicant for review and signature. The applicant must return the signed SOF to the county welfare department within 30 days for assistance to continue.

2. Upon approval for CalWORKs, all aided adults must provide a government issued photo identification to the county. An aided adult may choose to provide the photo identification by virtual methods, such as videoconferencing.

Time Limited Cash Assistance

Effective May 1, 2022, the CalWORKs program implemented a cumulative 60- month lifetime limit on the receipt of cash assistance for aided adults. From July 1, 2011 to April 30, 2022, the CalWORKs time limit was 48-months. Any assistance received from CalWORKs, another state's TANF program, or a separately administered Tribal TANF program after January 1, 1998 counts toward the CalWORKs time limit. There are exemptions and exceptions to the time limit which may provide additional months of CalWORKs cash assistance to adults.

The time limit does not apply to children. Children of adults who exhaust the 60- month CalWORKs time limit may continue to receive cash assistance up to age 18, if otherwise eligible. There are exceptions to this rule, which allow a child to remain aided past age 18. One example of those exceptions is if a child that is less than 19 years of age is attending high school or the equivalent level of vocational or technical training on a full-time basis and is reasonably expected to complete the educational or training program on or before their 19th birthday.

Work Requirements

CalWORKs provides a wide array of services and supports for families to enter and remain in the workforce. Parents and caretaker adults, unless exempt from work requirements, are required to participate in WTW activities as a condition of receiving assistance.

CalWORKs Hourly Participation Requirements apply to adults required to participate in WTW activities, and the number of required hours is based on the number of adults and the age of children in the AU. An adult in a one-parent AU is required to participate in WTW activities for an average of 30 hours per week, or 20 hours per week each month if they have a child under the age of 6.

An AU comprised of a PPO, is required to participate in WTW activities for an average of 20 hours per week. In a two-parent AU, one or both adults must participate in WTW activities for a combined average of 35 hours per week.

During their 60 months of receiving aid, adults may receive CalWORKs services and have access to the full array of available activities to address barriers to and prepare for employment.

CalWORKs has a “universal engagement” requirement for counties to ensure recipients are participating in appropriate WTW activities as soon as possible. Recipients are required to participate in “initial engagement activities” following the date that the recipient begins receiving cash assistance, and before the WTW plan is developed.

These initial engagement activities are limited to four consecutive weeks and to those activities defined as “job readiness assistance” in California’s Work Verification Plan. Counties are required to develop WTW plans with a recipient within 90 days from the date an individual begins receiving cash assistance. However, when initial engagement activities would not be appropriate for the recipient, the county must immediately develop a WTW plan, regardless of time since cash assistance was first received.

Certain recipients failing or refusing to comply with program requirements relating to employment or workforce preparation are required to participate in community services activities. The community service criteria are outlined in state law and individual county plans. Clients who meet certain criteria will qualify for an exemption from WTW requirements. Qualifying exemption criteria include age 60 and over, disability, pregnancy, and parenting a young child. CalWORKs also provides good cause for more short-term conditions preventing the client from participation, such as lack of transportation, temporary injury, lack of supportive services, and other temporary circumstances that prevent participation. Failure to participate in WTW activities, unless exempt from WTW, can result in a financial sanction in the form of an aid reduction equal to the adult’s (’) portion of the family grant.

Note: clients found to be meeting federal TANF participation requirements are not subject to sanction under CalWORKs.

Supportive Services

Supportive services, including child care, transportation, diaper assistance payments (for AUs caring for children under 36 months of age), ancillary expenses (such as books for students, clothes or equipment needed for a job), and personal counseling such as mental health, domestic violence, housing search, or other barrier removal services, are available for families participating in WTW activities. Additionally, WTW participants enrolled in publicly funded postsecondary educational institutions are entitled to receive an advance standard payment (ASP) for required books and supplies prior to the start of the

school session. If needed supportive services are not available, the recipient has good cause for not participating.

Child care vouchers are available to current or former cash assistance recipients who are eligible to receive assistance with paying for child care with a provider of their choice. Child care services in CalWORKs ensure that access to stable child care is never a barrier to fully engaging in the CalWORKs program. Child care vouchers are provided for children through the age of 12, and for children with exceptional needs and severely disabled children up to age 21. Child care payments are paid directly to the child care provider or the parent in specific situations without the use of income disregards.

CalWORKs Stage One Child Care may be authorized immediately and continuously for 12 months upon cash aid approval, or until participants are transferred to Stage Two. This applies to every WTW eligible participant, including a sanctioned participant who indicates an intent to cure their sanction by participating in a program activity or employment, or who expresses a need for child care in order to successfully engage. Child care shall be authorized on a full-time basis unless the participant requests part-time care.

Counties must verify that child care has been secured before mandating any early engagement activities. In addition, counties shall inform participants of the availability of paid child care at several times throughout their time in CalWORKs.

Special supportive services and intensive case management services are also available for pregnant and parenting teens. These services are provided through the Cal-Learn Program, which is designed to encourage pregnant and parenting teens to complete high school or its equivalent. Participation in Cal-Learn is mandatory for pregnant or parenting teens who have not completed high school or its equivalent and are ages 18 and under and is voluntary for specified 19-year old's receiving CalWORKs. Cal-Learn teens may earn a \$100 bonus up to four times a year for making satisfactory grades on their report card. A \$500 graduation bonus is given to each Cal-Learn teen upon earning a high school diploma or equivalent. A Cal-Learn teen who is non-participatory, fails to demonstrate adequate grades, or does not have a good cause determination will be sanctioned \$100 up to four times in a twelve-month period. The sanction will be applied to the Cal-Learn teen's AU. A county must determine the Cal-Learn teen's progress four times in a twelve-month period. At any given reporting time a Cal-Learn teen will receive a bonus for satisfactory progress, a sanction for failing to demonstrate adequate progress or will receive neither a sanction nor bonus for achieving adequate progress.

CalWORKs Home Visiting Program (HVP)

This county-optional voluntary program serves pregnant individuals and parents or caretaker relatives with a child under the age of 24 months at the time of enrollment. Individuals must also be a member of a CalWORKs assistance unit,

a parent or caretaker relative of a child-only case, or apparently eligible for CalWORKs aid. Counties may serve additional parenting individuals with departmental approval.

The purpose of the HVP is to support positive health, development and well-being outcomes for pregnant and parenting people, families, and infants born into poverty. By helping families achieve stability and keep their children in the home while participating in the HVP, the program hopes to lay the foundation for other long-term goals such as future educational opportunities, economic progress, and greater financial stability – all while providing the tools necessary to end their time on government aid and achieve self-sufficiency. This two-generational service delivery approach will improve family engagement practices, support healthy development of young children living in poverty, and prepare parents for robust engagement in WTW activities and employment.

Home visitors with pre-service training in an evidence-based home visiting model, the CalWORKs program, cultural competency, and implicit bias refer clients to a multitude of resources.

Resources include prenatal, infant and toddler care; infant and child nutrition; child developmental screening and assessments; parent education, and training in parent/child interaction; child development and child care referral; job readiness and barrier removal; domestic violence and sexual assault services; and mental health and substance abuse treatment and support.

CalWORKs clients may choose to participate in the HVP who are:

- a pregnant individual,
- a member of an assistance unit with a child under 24 months old,
- a parent or caretaker relative, or
- are apparently eligible for CalWORKs cash aid but their application has not yet been approved.

However, the HVP participant does not need to be eligible for, nor are they required to participate in, the CalWORKs WTW program.

If a client participates in the CalWORKs WTW program, then some of the activities spent directly with the home visitor may count towards federally allowable work activities, in alignment with federal activity definitions, time limits, and California's Work Verification Plan.

For example, job search and job readiness (JS/JR) is a federally countable activity for 120 hours up to 180 hours total in a 12-month period. While the entire duration of a Home Visit may not count as JS/JR, some components of that Home Visit may count. For example, one of the home visiting models used in California includes a component known as *Family Goal Planning*. This component of the home visit is individualized goal setting with the client, including a plan for the family to become self-sufficient. In the case of a two-hour Home Visit in which one hour was spent doing individualized goal planning for self-sufficiency, California would only count one hour towards JS/JR.

Other examples of home visiting case management components that may count towards JS/JR include:

- Pregnancy health and education, which reduce instances of out-of-wedlock pregnancy and offer better health outcomes for pregnant people.
- Referrals to community resources, including career development and education services.

In addition to JS/JR, some components of California's home visiting models may count toward other federally allowable activities, only to the extent that they can be counted according to federal guidelines. For example, the HVP program includes volunteer hours in an early learning setting which may be counted as community service, work experience, or job readiness.

Family Stabilization

CalWORKs also provides intensive supportive services to families in crisis, known as family stabilization (FS) services. FS services include intensive case management services to address immediate crisis situations and needs, such as housing instability or family safety issues. These services ensure a basic level of stability within the family so that future participation in WTW activities that lead to self-sufficiency may be more successful.

CalWORKs Housing & Homelessness Programs

CalWORKs Housing Support Program (HSP)

CalWORKs offers HSP to assist eligible families in the CalWORKs program who are experiencing or at-risk of homelessness, including participants who have not yet received an eviction notice and for whom housing instability would be a barrier to self-sufficiency or child well-being.

Counties that elect to operate HSP are awarded HSP funds and given the flexibility to design their own county specific HSP plan to serve the needs of their unique populations. Among CalWORKs participants identified as eligible for HSP, counties are advised to prioritize serving participants experiencing homelessness and those with the greatest vulnerabilities and risk factors for homelessness, including households with multiple risk factors.

Counties are required to use evidenced-based models. HSP funding must be used to support projects that follow evidence-based housing interventions, including homelessness prevention services and/or the core components of rapid rehousing. Further, all state-funded housing programs, including HSP, operate in accordance with the core components of Housing First as enumerated in WIC Section 8255.

CalWORKs HSP can provide housing supports to obtain or maintain permanent housing, and can provide temporary shelter, help with moving costs, short to medium term rental subsidies, and wraparound case management. Services that may be provided by the county may include, but are not limited to case management, housing relocation and stabilization services, landlord engagement, credit repair, and legal services. Financial assistance provided to families includes but is not limited to rental assistance, moving costs, deposits, and utilities.

CalWORKs Homeless Assistance (HA)

The CalWORKs HA Program was established to help eligible families in the CalWORKs program meet the costs of securing or maintaining permanent housing when at risk of homelessness or to provide emergency shelter when a family is experiencing homelessness. The CalWORKs HA program serves eligible CalWORKs recipients or apparently eligible CalWORKs applicants, who are homeless, or at risk of homelessness. CalWORKs families receiving Family Reunification services are also eligible if the county determines that these benefits are necessary for reunification to occur. CalWORKs HA can provide payments for temporary shelter for up to 16 days, as well as payments to secure or maintain housing, including a security deposit and last month's rent, or up to two months of rent arrearages. Eligible families may receive HA benefits once every 12 months with exceptions due to domestic abuse, illness, uninhabitability of the home, or declared natural disaster.

The expanded temporary HA program is also available for CalWORKs applicants who are fleeing domestic abuse. Expanded HA for Victims of Domestic Abuse requires that a CalWORKs applicant who provides a sworn statement of past or present domestic abuse and who is fleeing their abuser shall be deemed to be experiencing homelessness and shall be eligible for up to 32 days of temporary HA, if determined apparently eligible for CalWORKs, disregarding any income or assets attributable to the alleged abuser. Expanded HA for Victims of Domestic Abuse is available in two 16-day increments once in a lifetime.

Parental Responsibility

CalWORKs encourages parental responsibility by requiring parents to immunize their assisted children under the age of six and cooperate with the child-support

enforcement process. Failure to meet these requirements results in a reduction of the adult's portion of the grant. If a child age 16 or older does not attend school and is deemed a chronic truant, this may result in a reduction of the child's portion of the grant unless certain conditions apply.

Benefit Levels

Grant levels and amounts vary according to AU size, exempt status, and geographic location. Families in high cost-of-living areas (Region 1) receive slightly more money than families in other areas (Region 2). A family in which all adults are disabled or otherwise exempt from work requirements is eligible for the higher exempt grant amount.

Post-Assistance and Post-Time Limit Families

Former CalWORKs clients may receive child care for a minimum of 24 months after leaving assistance if they are employed or participating in another approved activity, have an age eligible child, and remain at or below 85% of the state median income (SMI). At county option, employed former recipients may continue to receive work supports and other job retention services offered by the county for up to 12 months. Also at county option, individuals who exceed CalWORKs time limits and continue to receive state-only benefits for their eligible children may continue to receive post-assistance services. Services for employed former recipients and individuals that exceed CalWORKs time limit may include, but are not limited to, substance abuse services, domestic abuse services, parenting classes, vocational education and training, and transportation and ancillary work supports.

Commitment to Child Well Being

California provides TANF benefits to children in need even after their adult caregiver reaches the 60-month time limit for receipt of cash assistance. California also continues to provide assistance to children when adults fail to meet program requirements and are sanctioned.

Program Administration

The CalWORKs Program is administered by counties under supervision, guidance, and direction of the CDSS. Although eligibility requirements and grant levels are uniform throughout the state, counties are given considerable latitude to design WTW programs that best meet the needs of their diverse populations, local economic and environmental context, and culture. Each county must have a CalWORKs county plan describing specific program outcome goals and how those outcomes are to be achieved.

Many California County Welfare Departments are partnered with American Job Centers under the federally funded Workforce Innovation and Opportunity Act (WIOA) to provide services to CalWORKs participants.

Legal Authority

Assembly Bill (AB) 1542 (Ducheny, Chapter 270, Statutes of 1997), the Welfare to Work Act of 1997, established the CalWORKs program in California. AB 1542 eliminated the Aid to Families with Dependent Children (AFDC) program and the Greater Avenues for Independence (GAIN) program and replaced them with the CalWORKs program.

- ii. **Outline how the state intends to require a parent or caretaker receiving assistance under the program to engage in work (as defined by the state) once the state determines the parent or caretaker is ready to engage in work.**

California's WTW program is designed to assist CalWORKs recipients in finding employment and/or acquiring the necessary job or workforce skills to obtain employment. To reach that goal, the CalWORKs program established mandatory work participation requirements for assisted parents and caretakers as follows:

- At the time of application, the county may determine that the individual meets specified criteria for exemption from participation in employment preparation or work activities. Otherwise, the county will determine an individual's ability to engage in work upon their entry into the CalWORKs WTW Program.
- After assistance has been granted, recipients who are not exempt are required to participate in an appraisal.
- If the client does not possess a high school diploma or its equivalent, then earning a high school diploma or equivalent shall be the primary activity unless the client opts out in writing. Clients are generally assigned to job search for four weeks as their first work activity upon completion of the appraisal.
- If the appraisal indicates that the recipient should participate in mental health, substance abuse, or domestic abuse services in lieu of or in addition to job search, or adult basic education activities, then those activities are assigned. The four-week period may be shortened if the county determines that the recipient would not benefit from the activity or time in job search may be lengthened if additional time would result in employment.

- Recipients with more significant barriers may be assigned to initial engagement activities including FS services for those in crisis, or more intense substance abuse or mental health treatment and other barrier removal activities in preparation for participation in WTW.
- If the recipient is unable to find unsubsidized employment through job search, or if initial engagement or barrier removal activities would last longer than four weeks, the individual is referred for an assessment. Based upon the assessment, the county and the recipient must develop and agree upon a WTW plan, which covers the activities and services that will be provided to an individual, as appropriate and as resources permit.
- The WTW plan for recipients receiving cash assistance who are required to participate in WTW specifies the supportive services, which may include child care, transportation, diaper assistance payments (for AUs caring for children under 36 months of age), necessary books and supplies for students, clothes or equipment needed for a job, and personal counseling, such as mental health, domestic violence, housing search, or other barrier removal services. Payments for these services are made separate from any monthly income support payment and may or may not be in the form of cash to the recipient.
- If necessary supportive services are unavailable, the participant has good cause for not participating in their assigned WTW plan activities.
- All current CalWORKs services and WTW activities are available to clients, without restriction of activity time limits or a core hourly requirement. Aligned with TANF, CalWORKs standards require adults to participate a total of 20 hours per week for single-parents with a child under six years old; 30 hours per week for single parents with children six years old and older; and 35 hours per week, combined, for two parents. The appropriate activities and services are incorporated into a WTW plan designed to meet the CalWORKs hourly participation requirements and agreed upon by the client and county worker. The WTW activities offered by the County may include, but are not limited to the following:
 1. Unsubsidized employment – employment in the public or private sector for which the welfare-to-work participant's employer is not reimbursed for wages and/or training costs by the County Welfare Department (CWD), or via any other entity;
 2. Subsidized private or public sector employment – employment in which the participant's employer is partially or wholly reimbursed for wages and/or training costs;
 3. Work experience – a WTW training activity in the public or private sector that is performed under close supervision and helps provide basic job skills, enhance existing skills, or provide a needed community service that will lead to unsubsidized employment;

4. On-the-Job Training (OJT) – training in the private or public sector that is given to a paid participant while the participant is engaged in productive work. The employer is subsidized to offset training costs. This activity may also include paid classroom instruction as required by the participant's employer;
5. Grant-based OJT – a voluntary WTW activity that is performed in the public or private sector in which a recipient's cash grant, or portion thereof, or the assistance grant savings resulting from employment, or both is diverted to the employer as a subsidy to wholly or partially offset the payment of wages. The total amount diverted does not exceed the family's maximum assistance payment. The wage derived from the diverted cash grant and/or grant savings is considered nonexempt income and is not subject to the earned income disregard specified in Section B iii;
6. Supported work or transitional employment – both are voluntary WTW activities that are forms of grant-based OJT in which a recipient's cash grant, or portion thereof, or the assistance grant savings resulting from employment, is diverted to an intermediary service provider to totally or partially offset the payment of wages to the recipient;
7. Work study – means a type of subsidized employment as described in 42-701.2(s)(2) in which the subsidized employment placements are made through a college where a welfare-to-work participant is enrolled and making satisfactory progress;
8. Self-employment – means employment by means of earning a living by working as a sole proprietor or other business entity and not as an employee of another. Self-employment must include compensation as defined under "employment" in Section 42-701.2(e)(2);
9. Community service – a WTW training activity that is temporary and transitional, which is performed in the public or private nonprofit sector under close supervision, and provides participants with job skills that can lead to employment while also meeting a community need;
10. Adult basic education – a WTW activity needed by the individual to become employed and may include instruction in reading, writing, arithmetic, high school proficiency, or general educational development (GED) certificate instruction, and English as a second language;
11. Job skills training directly related to employment – training or education for job skills required by an employer to provide an individual with the ability to obtain employment or to advance or adapt to the changing demands of the workplace;

12. Vocational education and training – programs including but not limited to those offered through colleges, community colleges, adult education, and regional occupation centers;
13. Job search/job readiness – training in basic job seeking and interviewing skills and understanding employer expectations and employee obligations;
14. Education directly related to employment – education related to a specific occupation, job, or job offer. The activity is primarily for adult education leading to a General Education Development (GED) credential or high school equivalency diploma, where required as a prerequisite for employment;
15. Programs leading to a GED certificate or satisfactory progress in secondary school as needed by an individual to become employed;
16. Non-medical mental health counseling, treatment, and rehabilitation activities necessary to obtain and retain employment;
17. Non-medical substance abuse counseling, treatment, and rehabilitation activities necessary to obtain and retain employment;
18. Domestic violence services necessary to obtain and retain employment;
19. In addition, an individual's WTW activity may include the parent's participation required by a school to ensure that a child in the AU attends school as required; and
20. Other activities necessary to assist an individual in obtaining unsubsidized employment.

iii. Outline how the state intends to ensure that parents and caretakers receiving assistance under the program engage in work activities in accordance with Section 407.

California has designed a program that provides parents and caretakers receiving CalWORKs cash assistance the opportunity to participate in employment and training activities that will assist them to become economically self-sufficient (See Section A ii. above). To ensure participants engage in work activities, the state's program also provides necessary supportive services such as assistance with transportation, ancillary, postsecondary ASPs, diaper assistance payments to AUs with children under 36 months of age, child care expenses, and personal counseling for the participant to successfully participate in work or their assigned WTW activities. In addition, all WTW participants have

access to remote learning opportunities which increase accessibility for parents and caretakers.

However, as another measure to encourage compliance with work requirements, the program also provides for financial penalties for failing or refusing to participate in the program as required.

Any non-exempt recipient of assistance who refuses to sign their WTW plan, refuses to cooperate in meeting program requirements, or fails to fulfill the terms of their WTW plan without good cause is removed from the AU and incurs a financial sanction until the individual performs the required WTW activity. Clients failing to meet their CalWORKs WTW requirements are still considered in compliance when they are meeting federal TANF participation requirements. Clients in sanction status found to be meeting TANF requirements will have their sanction cured.

iv. Outline how the state intends to take such reasonable steps, as the state deems necessary to restrict the use and disclosure of information about individuals and families receiving assistance under the program attributable to funds provided by the federal government.

Existing state law specifies that information about individuals and families receiving assistance is to be considered confidential. Therefore, except as authorized by federal law, the state will continue to enforce existing confidentiality regulations. These statutes and regulations protect applicants and recipients against identification, exploitation, or embarrassment that could result from the release of information identifying them as having applied for, or having received, public assistance. The statutes and regulations apply to all records, papers, files, and communications (whether written or oral) pertaining to applicants for, and recipients of, public assistance. They also outline under what circumstances, and to whom, such information may be released.

All information concerning the circumstances of any individual applying for, or receiving, public assistance is confidential and is safeguarded. No disclosure of any information obtained by a representative, agent, or employee of the county while discharging their duties, shall be made directly or indirectly other than in the administration of public social service programs, or as provided under law. Any disclosure of information that identifies by name or address any applicant or recipient of public social services to federal, state, or local legislative bodies and their committees without the consent of such applicant or recipient is prohibited. Both the release and the possession of confidential information in violation of the rules are misdemeanors.

v. Outline how the state intends to establish goals and take action to prevent and reduce the incidence of out-of-wedlock pregnancies, with special emphasis on teenage pregnancies.

California employs a multi-pronged approach to preventing adolescent pregnancy by promoting comprehensive sexual health education, increasing access to reproductive and sexual health services, and supporting reproductive life planning.

For young individuals under the age of 18, strategies include primary and secondary pregnancy prevention, sexual health education, and linkage to clinical services.

The numerical objective is based on the birth rate for individuals aged 15-17 years old. For all individuals of reproductive age, the strategy is promotion of pregnancy planning, healthy relationships, and partner involvement.

CDSS and the California Department of Public Health (CDPH) continue to explore various strategies to promote pregnancy planning, prevent adolescent pregnancies and sexually transmitted infections, support formation of healthy relationships, encourage declarations of paternity, and promote healthy co-parenting, including involvement of fathers and same-sex parents.

California programs which may be involved in these efforts include Cal-Learn, CalWORKs Family Planning Information Project, the Adolescent Family Life Program (AFLP), California Personal Responsibility Education Program (CA PREP), Family Planning, Access, Care, and Treatment (Family PACT) Program, and the Information and Education (I&E) Program.

Highlights from these efforts are embodied in the programs/efforts described below:

- Cal-Learn is a mandatory program that helps pregnant or parenting teens who receive CalWORKs/TANF graduate from high school. Cal-Learn teens receive additional case management and a yearly financial bonus for earning a satisfactory high school report card.
- CA PREP works to promote and improve the sexual and reproductive health of high-need youth populations (10-19 years old) in California through implementation of evidence-based sexual health education curricula and linkage to clinical services. In program year 2016-17, I&E and CA PREP provided comprehensive sexual health education to 17,584 youth in high need areas across the state.
- The I&E program aims to educate young people (12-19 years old) about sexual and reproductive health through evidence-based or evidence-informed curricula; to provide information on eligibility and access to reproductive health care services, and to engage local communities to promote adolescent health.

- The AFLP is a strengths-based case management program with integrated life planning for expectant and parenting youth under 19 years of age. The program supports youth in building resilience strengths and skills to thrive. The goals are to improve pregnancy planning and spacing and increase educational and vocational attainment, access to and utilization of needed services, and social and emotional support.
- The Family PACT Program, administered by the California Department of Health Care Services' Office of Family Planning, is a statewide comprehensive family planning and reproductive health services program aimed to reduce unintended pregnancy through expanded access to family planning and reproductive health services for low-income Californians, including adolescents. Some of the services covered under Family PACT include all Food and Drug Administration approved contraceptive methods and client-centered reproductive health education and contraceptive counseling.
- California has a stated goal of reducing the incidence of pregnancies and sexually transmitted infections (STIs) among individuals aged 17 or younger. CDPH has undertaken this challenge through continuing efforts in adolescent sexual health education, and primary and secondary pregnancy prevention programs in the Maternal, Child and Adolescent Health Division.
- These prevention programs require linkages or referrals to Family PACT enrolled providers. This helps ensure that young people receiving prevention programming are aware of and can access health services, including information and counseling.

vi. Outline how the state intends to conduct a program designed to reach state and local law enforcement officials, the education system, and relevant counseling services, that provides education and training on the problem of statutory rape so that teenage pregnancy prevention programs may be expanded in scope to include men.

The CDPH currently funds 23 local rape crisis centers to implement population- based sexual violence prevention programs through the federally funded Rape Prevention and Education (RPE) Program, which is designed to change social norms that perpetuate sexual violence. The RPE Program targets individuals of all ages, races, and circumstances. Most of the RPE program contractors are working in schools and communities to offer educational activities that are aimed at promoting healthy relationships and consent.

Many of the California local RPE Program contractors work with law enforcement, community-based organizations, and educational institutions to conduct outreach and prevention education within their communities. Local rape crisis centers address the spectrum of sexual violence, including statutory rape, during their prevention education activities targeting adolescents.

The local rape crisis centers also provide direct client services, including counseling services to their clients, through federal Violence Against Women Act funds, which are administered in California by the Governor's Office of Emergency Services.

SPECIAL PROVISIONS

- vii. Indicate whether the state intends to treat families moving into the state from another state differently than other families under the program, and if so, how the state intends to treat such families under the program.**

California does not treat families moving into the state from another state differently from other families under the program.

- viii. Indicate whether the state intends to provide assistance under the program to individuals who are not citizens of the United States, and if so, include an overview of such assistance.**

California uses TANF funds to serve qualified noncitizens in accordance with TANF provisions. California also assists some legal noncitizens who are not eligible for TANF. This assistance aligns with TANF but is funded with state-only general funds. These noncitizens must meet the same financial criteria and are subject to the same work requirements as CalWORKs recipients.

- ix. Set forth objective criteria for the delivery of benefits and the determination of eligibility and for fair and equitable treatment, including an explanation of how the state will provide opportunities for recipients who have been adversely affected to be heard in a state administrative or appeal process.**

CalWORKs establishes uniform objective criteria for determination of eligibility for cash assistance, diversion services and supportive services to families with (or expecting) a needy child. Eligibility is based upon need as indicated by age, citizenship, deprivation, income, resources, and residency. In addition, continued eligibility is based on compliance with work requirements, as applicable, and the reporting of specific information, and is limited to 60 months. Exemptions to work requirements and time limits are defined. Fleeing felons are ineligible for benefits under this program.

A parent or caretaker relative of a child in a CalWORKs AU can elect to receive full child support payments for a stepsibling or half-sibling of an eligible child in the AU in lieu of cash assistance for the step/half-sibling and exempts those child support payments from consideration in determining CalWORKs eligibility or grant amounts. The step/half-sibling would remain eligible for other cash-linked programs and services (CalFresh and Medi-Cal) provided they continue to meet all other eligibility requirements.

An applicant family shall not be eligible for CalWORKs unless the family's income, exclusive of the first four hundred and fifty dollars (\$450) of earned income for each employed person, is less than the minimum basic standard of adequate care (MBSAC) as specified in Welfare & Institutions Code (WIC) Section 11452.

A recipient family shall remain eligible when a needy child or adult is temporarily absent from the home. Per state regulations, the time period for these initial temporary absences from the home is one full calendar month of at least 30 days. Seven exceptions to this policy are defined in state regulations due to changes in household circumstances. State regulations also requires that the basis for the temporary absence be documented in the case file.

Changes in household circumstances that result in an exception to the temporary absence policy include:

- confinement to a correctional facility,
- hospitalization,
- employment,
- attending educational and vocational training school,
- child with special needs,
- child in a group home, and
- children receiving out-of-home care.

Detailed explanation of these exceptions are in the state's Manual of Policies and Procedures (MPP) Section 82-812.6. Each exception is subject to specific timeframes based on the household circumstance.

Family Reunification

In a CalWORKs Family Reunification (FR) case, the eligible children are considered temporarily absent from the home and the CalWORKs case remains open. Family Reunification cases can receive CalWORKs temporary homeless assistance payments, and WTW services. To be eligible for FR, the family must have been receiving CalWORKs assistance when the child was removed, and the county has determined that the provision of CalWORKs services is necessary for reunification. Counties have the option to provide services to FR cases for up to six-months, with an additional option to extend services where reunification happens more than six-months from the date of the child's removal from the home. These extended services can be continued until termination of the family reunification plan (MPP Section 82-812.679(b)). California's FR policy is federally

permissible pursuant to section 408(a)(10)(B) of the Social Security Act and is found in CA statute under WIC Section 11203(b). Depending on if the case meets all TANF eligibility requirements (e.g., does not exceed time on aid limits, citizenship, etc.), FR cases are funded with either TANF or State General Fund. Homeless assistance is considered a non-recurring short-term benefit and is provided for a total of 16 days.

Income Reporting Threshold

A recipient family shall not be eligible for CalWORKs if income, exclusive of amounts considered exempt, exceeds an income reporting threshold (IRT) specified in WIC Section 11265.3 and WIC Section 11265.47.

Child Care

Child care services will be made available to every cash assistance recipient who is working or participating in program activities. Child care payments are paid to the provider of services or the parent in specific situations without the use of income disregards.

Diversion

California's lump-sum diversion program is designed to assist applicants who are apparently eligible to receive CalWORKs cash assistance and would likely avoid the need for extended assistance beyond the diversion period if the family was provided one-time assistance. The county shall determine eligibility for the diversion program at its sole discretion. The applicant may either participate in the diversion program or decline participation. If the applicant chooses to participate, the county denies the CalWORKs application but continues to determine eligibility for Medi-Cal and CalFresh if also requested from the multiprogram application. State law requires that if an individual applies for cash assistance during the diversion period that the individual must pay back the diversion.

Annual Reporting Child Only (AR/CO)

Most child-only CalWORKs cases in which there is no aided adult in the home, including cases where the adult has reached the 60-month CalWORKs time limit, report certain changes annually via an annual redetermination. Annual Reporting Child Only (AR/CO) cases must report certain changes within 10 days, including household composition changes and certain changes in income. However, if no mandatory mid-year changes occur, such cases only complete an annual redetermination. Other examples of child-only cases include cases in which:

- The adult(s) is a non-needy relative;
- The adult(s) does not qualify for CalWORKs due to immigration status;
- The adult(s) is sanctioned (other than WTW sanctions);
- The adult(s) is excluded due to being a fleeing felon or due to being found by a court to be in violation of probation or parole;

- The adult(s) is receiving Supplemental Security Income;
- The adult(s) has been convicted of an Intentional Program Violation prior to July 1998;
- The adult(s) does not qualify for CalWORKs because they do not have a Social Security Number from the Social Security Administration and refuse assistance from the county to obtain one; or
- The adult(s) is participating in a labor strike.

The above list is not all-inclusive. CalWORKs AUs that include either an adult receiving cash assistance for themselves or an adult that has been sanctioned due to non-compliance with WTW requirements are subject to Semi-Annual Report (SAR) requirements, as specified below. AUs that include either an assisted adult or an adult sanctioned due to non-compliance with WTW requirements are not ARCO cases.

Semi Annual Reporting (SAR)

AUs that include an adult receiving cash assistance for themselves or an adult sanctioned due to noncompliance with WTW requirements are subject to SAR reporting requirements. Under SAR, the counties budget prospectively using reasonably anticipated income. Grants may be decreased or discontinued based on a report of income over an income reporting threshold that is based on the AUs last reported income.

Nonrecurring Emergency Assistance

Nonrecurring, emergency assistance benefits may be provided to eligible families to meet extraordinary needs that arise as a result of an emergency, natural disaster, crisis situation, or episode of need. As per the provisions at 45 CFR Section 260.31(b)(1), non-recurring, short-term benefits must: be designed to deal with a specific crisis situation (such as government declared disasters, mandatory evacuation, etc.) or episode of needs; are not intended to meet recurrent or ongoing needs; and non-recurring emergency assistance will not exceed 4 months from the start of the crisis situation.

Job Retention

To the extent that services are not available from other sources, counties have the option to provide former recipients with job retention services, such as case management services and supportive services, in order to assist the individual in retaining employment. These services can be provided for up to 12 months for former recipients who received assistance within the previous 12 months. Recipients who leave assistance may be eligible for up to 12 months of transitional Medi-Cal and/or a minimum of 24 months of child care.

The Emergency Assistance Program

The Emergency Assistance Program provides benefits and services to children and families in emergency situations. Individuals may be provided services that were previously funded through Title IV-A on September 30, 1995.

The same eligibility criteria are applied to this population that was in effect at that time. Federal requirements state that an emergency must exist within the family in order for the child to be considered eligible for assistance. For EA Program purposes, a family is defined as head of household and anyone living with the head of household. An emergency is defined as "...a child who is at risk of abuse, neglect, abandonment or exploitation."

The following federal eligibility criteria must be met before a family can be determined eligible for assistance:

- The child is (or, within six months prior to the month in which assistance is requested, has been) living with any of the specified relatives: their father, mother, brother, sister, half-brother, half-sister, uncle, aunt, first cousin, nephew, niece, stepfather, stepmother, stepbrother, stepsister, adoptive parent, or any such person of a preceding generation denoted by the prefixes grand, great, or great-great. This can include the spouse of any person named above, even after the marriage has been terminated by death or dissolution.
- The family has not been authorized for EA during the previous 12 months in California. If the family had received EA during the previous 12 months, the next eligibility period begins 12 months after the beginning date of the previous period.
- When determining a child's income eligibility only the child's income is considered. The child's income cannot exceed 200 percent of California's Median Family Income, as certified by the applicant. For more information on the median income, you may wish to visit the HUD website at:
<http://www.huduser.org/search/search.asp>.
- The emergency did not arise because an adult family member refused without good cause to accept employment or training.

The EA-Child Welfare Services component provides a continuum of services which fall under Emergency Assistance and are at least partially funded by TANF. These services, which were previously funded through Title IV-A, include:

- Payment for emergency shelter care;
- Case management;
- Counseling;
- Information and referral; and
- Transportation related to the above.

The above assistance is limited within any twelve (12) month period to a single episode per family with a maximum duration of twelve months or less as necessary to resolve the emergency situation. This assistance must be authorized within a single 30 day period beginning no less than twelve months after the start of the family's last Emergency Assistance authorization period and must be in response to a new emergency.

The above services were authorized solely under prior law and are reported in California's 196R Financial Report under the expenditure category 7(c).

TANF MOE-Funded Services

In addition to CalWORKs recipients, this section details additional programs that meet one or more of the four purposes of TANF and are funded with federal TANF funds and/or qualify as state MOE expenditures. TANF MOE-funded services include, but are not limited to:

State-Subsidized Child Care and Development Programs:

Programs serve children and families meeting specific eligibility criteria including families who are very low income, are homeless or whose children are at risk of being abused, neglected, or exploited. As provided in the state's annual Budget Act, exclusively for the purposes of determining qualified MOE expenditures in CDSS' subsidized child care and development programs, an "eligible family" is one with a child(ren) living with a parent or other adult caretaker relative who is financially needy under the CalWORKs income standards established by the State. A family is eligible for CDSS State Subsidized Child Care if their adjusted monthly income based upon the family size is at or below 70 percent of the state median income (SMI). This program meets purpose numbers #1 and #2 of TANF.

The California Community Colleges Chancellor's Office:

Offers Institution-Based Student Aid to low-income students attending any of the state's Community Colleges to further purpose number two of the TANF Program to reduce the dependency of parents in need by promoting job preparation, work, and marriage. The aid, called the California College Promise Grant (CCPG) (formerly known as the Board of Governors (BOG) fee waivers) permits enrollment fees to be waived. Assistance for the purchase of books and supplies must be applied for separately. These state funds can be countable, if eligible, toward the TANF MOE requirement as the assistance is provided to needy students.

The financial eligibility requirements for the CCPG are as follows: Fee waiver part A: student or parents that receive benefits in one of these programs: TANF/CalWORKs; SSI/SSP; General Assistance (GA). Fee Waiver Part B: Student or parents with low-income. The income levels are adjusted annually and are based upon the federal poverty guidelines. Student or student's family must have a total income in the base year, that is equal to or less than 150% of the U.S. Department of Health and Human Services Poverty Guidelines based on family size. The base year is defined as the income year used for the determination of an expected family contribution (EFC) for federal Title IV student financial aid. Fee Waiver Part C: Student has financial need of greater than \$1,104, based on an EFC from the Free Application for Federal Student Aid (FAFSA) or the California Dream Act Application (CADAA). Fee Waiver Part D: Student is homeless, student has received the Congressional Medal of Honor or is the dependent of a recipient; student is a dependent of a September 11, 2001 terrorist attack victim; student is a dependent of a

deceased law enforcement/fire suppression personnel killed in the line of duty; student has been exonerated of a crime, student is a dependent spouse, or Registered Domestic Partnership of a deceased physician, nurse, or first responder who died of COVID-19 during the COVID-19 pandemic in California.

The California Food Assistance Program (CFAP):

The CFAP provides state funded nutrition assistance benefits for certain qualified non-citizens who are ineligible for federally funded Supplemental Nutrition Assistance Program (SNAP), known as CalFresh in California. Except for the funding mechanism, CFAP is like CalFresh which provides nutrition assistance benefits on a monthly basis via Electronic Benefits Transfer (EBT).

CFAP households must meet the CalFresh eligibility criteria, including gross income below 200% of federal poverty level (FPL) and net income test. In line with CalFresh, each household's unique circumstances, including household size, income, and expenses are taken into consideration when determining CFAP eligibility. Only administrative and issuance expenditures made on behalf of CFAP recipients eligible for CalWORKs are counted toward MOE. The CFAP provides critical nutrition assistance and furthers the TANF goal to aid needy families so that children may be cared for in their own homes or in the homes of relatives.

The Kinship Guardianship Assistance Payment (Kin-GAP) Program:

The Kin-GAP program has two components – a federally funded component for children eligible for Title IV-E foster care (Fed-GAP), and a state-funded component funded under the CalWORKs program for federally ineligible children.

Kin-GAP serves those children exiting the foster care system to enter a guardianship with an approved relative caregiver. The state-only Kin-GAP program is available for those cases that are not eligible for the Fed-GAP program but meet the criteria for Kin-GAP. State and county expenditures are counted toward the state's TANF MOE requirement. To be eligible for Kin-GAP, all of the following must occur:

- The child was removed from their home pursuant to a voluntary placement agreement or the result of a judicial determination.
- The child has resided in the home of an approved relative caregiver for at least six months.
- The prospective relative guardian and county agency enter in a written binding agreement prior to the establishment of the guardianship.
- Dependency or wardship is terminated.
- The child has not turned 18 years of age.

Effective January 1, 2011, the State exercised its option to claim Title IV-E funds for kinship guardianship assistance benefits in accordance with Public Law (P.L.) 110-351. The Kin-GAP program has two components – a federally funded component for children eligible for Title IV-E foster care, and a state-funded component funded under the CalWORKs program for federally ineligible children.

In addition, effective January 1, 2012, eligibility for CalWORKs benefits extended to these eligible youth, referred to as non-minor dependents, up to age 21. Non-minor dependents meeting the eligibility criteria for extended benefits after age 18 are served under the CalWORKs state- only program.

CalWORKs Home Visiting Program (HVP)

Home visiting is an evidence-based, voluntary program model that pairs new parents with a nurse, or trained professional who makes regular visits in the participant's home to provide guidance, coaching, access to prenatal and postnatal care, and other health and social services.

The purpose of the home visiting program is to support positive health, development, and well-being outcomes for pregnant and parenting people, families, and infants born into poverty, expanding their future educational, economic, and financial capability opportunities, and improving the likelihood that they will exit poverty. This service meets purpose #1 and #2 of TANF. The HVP is funded consistent with the recipient's eligibility for the CalWORKs program, including TANF, TANF/MOE and non-MOE General Funds.

Tribal TANF

State funds matching approximately 95% of the federal TANF grant funds are allocated across the 18 for each Tribal TANF Programs in California. California Tribal TANF programs apply self-defined financial eligibility criterion for receipt of state-MOE and federally funded Tribal TANF assistance and services.

The state is adopting by reference the federally approved financial eligibility criteria established by each tribal TANF program as the state's financial eligibility criteria when determining eligibility for state-funded services provided by tribal TANF programs. The state ensures that the Tribal TANF programs are following the federally approved eligibility criteria included in the Tribal Family Assistance Plan (TFAP) by requiring each Tribal TANF program to:

- Provide a copy of the federally approved TFAP.

- The TFAP must include details of the service delivery area, population to be served, income and resource eligibility standards, and a specific list of the services to be provided.
- Comply with the Single Audit Act of 1984, as amended in 1996, including, but not limited to, 42 USC Section 609(a)(7), 45 CFR Section 263.2, 45 CFR Section 286, 2 CFR Part 220, Subpart F, and other applicable regulations or regulatory provisions.
- Provide to the state a copy of their Single Audit Report required by the federal government (45 CFR Section 287.60(b) and .65) on an annual basis. As a result of audit findings or other issues of non-compliance, CDSS will request a copy of the audit report to identify resolutions taken by the grantee and take appropriate action.

This meets purposes #1 - #4 of TANF.

The Work Incentive Nutritional Supplement (WINS) Program

The WINS program provides a ten-dollar (\$10) supplemental food assistance benefit to working families who are receiving Supplemental Nutrition Assistance Program (SNAP) benefits, called CalFresh in California, but not receiving CalWORKs cash assistance. Eligibility criteria for the WINS program include a net income of less than 100% of the FPL, at least one work-eligible individual who is working enough hours in subsidized or unsubsidized employment to meet TANF work requirements, and a child under age 18 in the household. The WINS benefit meets purpose #2 and #4 of TANF. WINS is a TANF/MOE/Non-MOE state funded food supplement benefit. WINS is not a cash payment. Two-parent cases, as well as Transitional CalFresh cases, are non-MOE funded.

CalWORKs Non-Custodial Parent (NCP) Services

CalWORKs provides WTW services to non-custodial parents of aided children who wish to receive WTW services and engage in activities. To be eligible for CalWORKs WTW employment services, the NCP must have established legal parentage for a child who is: 1) receiving aid in a CalWORKs Assistance Unit (AU); or 2) ineligible for aid (e.g., due to receipt of Supplemental Security Income/State Supplementary Payment [SSI/SSP]) and living with a parent or caretaker receiving CalWORKs assistance. NCPs are treated the same as exempt volunteer participants for purposes of assignment of WTW activities and services. NCP employment services are funded with non-maintenance-of- effort (non-MOE) State General Fund from the Single Allocation (SA) and they will not be included in the calculation of the TANF work participation rate (WPR).

The Approved Relative Caregiver (ARC) Program

Foster children/nonminor dependents (NMD) who are ineligible for federal foster care payments can receive ARC funding when living with an approved relative.

ARC payments are equal to the basic amount paid for a federally eligible foster child.

Funding

Historically, because a non-federally eligible foster child/NMD living with an approved relative could not receive foster care payments, the relative could apply to receive CalWORKs assistance for the child. Unlike foster care payments, typical CalWORKs grants are not a per-child payment but are based on the size of the family as a whole and are less than the foster care rate. The purpose of the ARC program is to increase the CalWORKs grant to be on par with the foster care rate.

Funding for ARC depends on whether the children are eligible for state CalWORKs (state funded only) or federal TANF (state/federally funded). Children or NMDs who are not eligible for federal foster care while placed with the approved relative caregiver are eligible for ARC. ARC-eligible foster children/NMDs who are not eligible for federally funded TANF, are funded with state-only CalWORKs or SGF. When designing and implementing the ARC program, attention was focused on ensuring there were no duplicate aid issues.

The determination of how an ARC case is funded is based on the status of the child at the time of removal. If a child was receiving CalWORKs (either state only funded or federal/TANF funded) at the time of removal, or; is eligible for CalWORKs (determined by information provided on the ARC 1 application form), the ARC payment for that child is met by a combination of the CalWORKs grant for an Assistance Unit of one (either state only funded or federal/TANF funded, depending on how the CalWORKs case was being funded at the time of removal) plus a State General Fund amount that would make the payment equal to what the child would receive if eligible for the foster care rate. If the child was not receiving CalWORKs or is no longer CalWORKs eligible, the ARC payment would consist solely of State General Funds.

Application Process for ARC

The ARC and CalWORKs Programs established a simplified CalWORKs application for relative foster children/NMDs placed with non-needy caretaker relatives. The shortened application includes questions specific to the child/NMD only, and clearly identifies the family as a non-needy caretaker relative. The simplified process improves access to CalWORKs and increases placement stability for this vulnerable population while they wait for approval or denial of foster care or ARC funding.

Additional Eligibility Criteria

Other than being a foster child/NMD placed with an approved relative and who are not eligible for Federal or state foster care payments, additional eligibility conditions are based on the combined income and resources of the child. The child may have up to \$10,000 in combined income and resources to be eligible for ARC. Additionally, the traditional Minimum Basic Standards of Adequate Care (MBSAC) rules are not used to determine initial eligibility and, the approved relative's income and assets are not used.

To the extent that services are not available from other sources, counties have the option to provide former recipients with job retention services, such as case management services and supportive services, in order to assist the individual in retaining employment. These services can be provided for up to 12 months for former recipients who received assistance within the previous 12 months. Recipients who leave assistance may be eligible for up to 12 months of transitional Medi-Cal and/or a minimum of 24 months of child care.

Timed out, Ineligible, and Long-Term Sanction-Cases: Non-MOE State General Fund (GF) outside of the federal TANF and state MOE funding structure is used to fund CalWORKs assistance, services, child care and administration costs for current work- eligible cases where (1) the adult in a single-parent family or both adults in a two-parent family has/have reached the 60-month CalWORKs limit for cash assistance (Safety Net cases), (2) the adult(s) is a fleeing felon, or (3) the adult(s) is in long-term sanction status of 12 or more months, and the adult(s) resides with an eligible child that continues to receive assistance. All programs or activities claimed by the State for MOE purposes are outlined in this State TANF Program Plan and are in alignment with the MOE programs and activities reported in the State's ACF-204. Applications for CalWORKs are made on a state-supplied application form that elicits the same information in every case. Applications are processed promptly by counties under a system of statewide regulations that ensure fair and humane treatment free of discrimination.

The following policies and principles are in state statutes and/or regulations and govern the delivery of public assistance:

- Assistance is to be administered promptly and humanely, with due regard to the preservation of family life and without discrimination on account of race, color, national origin, religion, political affiliation, sex, gender identity, sexual orientation, disability or marital status and age.
- Assistance is to be administered so as to encourage self-respect, self-reliance, and the desire to be a good citizen useful to society.

- It is the responsibility of all who are concerned with the administration of assistance to do so with courtesy, consideration, and respect toward applicants and recipients and without attempting to elicit any unnecessary information. Administrative duties should be performed in such a manner as to secure for every applicant and recipient the amount of assistance to which they are entitled under the law.
- The provisions of the law relating to public assistance are to be fairly and equitably construed.
- There are to be no questions, inquiry, or recommendation relating to the political or religious opinions or affiliations of an applicant or recipient.

Existing state law provides that applicants and recipients are guaranteed a state fair hearing before an administrative law judge. Applicants and recipients have 90 days to request a state hearing if they disagree with an action taken by the County Welfare Department. Applicants and recipients can request such a hearing by calling a toll-free number in Sacramento, emailing a request to SHDCSU@DSS.ca.gov, filing online or by facsimile, or by delivering a written request with the county. For more information, go to CDSS' state hearings request website, located at www.cdss.ca.gov/hearing-requests.

Hearing procedures are publicized on the State agency website and the hearing regulations are available on-line. The procedures provide for a face-to-face hearing, and a hearing by telephone or videoconference when the applicant or recipient agrees.

Every applicant or recipient is informed in writing at the time of application and at the time of any action affecting their claim of the right to a hearing, the method by which to obtain a hearing; and that they may be represented by an authorized representative, such as legal counsel, relative, friend, or other spokesperson, or they may represent themselves.

CalWORKs provides a grievance procedure for regular employees and their representatives to resolve complaints of displacement by WTW participants. However, any existing grievance procedure that is part of a collective bargaining agreement will be used in lieu of the state's grievance process.

In addition, counties are required to notify the appropriate labor union of the assignment of WTW participants to a worksite covered by a collective bargaining agreement. Posters informing employees of the displacement grievance process are to be posted at non-union work sites in which WTW participants are placed. The state's grievance process consists of an informal procedure that may be followed with a formal hearing conducted by the State Hearings Division of the California Department of Social Services, if the informal procedure fails to resolve the complaint.

Complaints of displacement are to be made in writing and filed with the county.

The county is responsible for the informal resolution process and notifying the complainant in writing of any offer made by an employer to informally resolve the complaint, the right to request a formal hearing, and the process for filing a request for a formal hearing.

- x. Indicate whether the state intends to assist individuals to train for, seek, and maintain employment providing direct care in a long-term care facility or in other occupations related to elder care for which the state identifies an unmet need.**

California intends to assist CalWORKs recipients to train for, seek, and maintain employment in the health care industry. This includes, but is not limited to, training for the provision of direct care in a long-term care facility and other occupations related to elder care. Such training may be provided as part of an individual's WTW plan in accordance with Section (A) (ii), based on an assessment of the individual's skills and abilities, and based on labor market need in the local community.

Counties will coordinate and collaborate with other agencies, such as the Department of Education, the Employment Development Department, American Job Centers, and local Workforce Development Boards, as well as local health care providers, to put clients in programs with training that lead to certifications and licenses that will allow the client to be employed in various healthcare occupations, including at long-term care facilities and in the elder care field. These trainings will occur at community colleges, Regional Occupational Programs, adult vocational schools, private career colleges, the American Red Cross, local hospitals, county health departments, and other training providers. For example, some CalWORKs participants are in an "Earn-As-You Learn" program that is offered directly through local long-term care facilities. Some counties provide mentors, internships, and job placements services.

- xi. Outline how the state intends to meet requirements specified in the Middle-Class Tax Relief and Job Creation Act of 2012, the Welfare Integrity and Data Improvement Act, which requires all states to maintain policies and practices as necessary to prevent TANF assistance from being used in any electronic benefit transfer transaction in (1) liquor stores; (2) casinos, gambling casinos, or gaming establishments; and (3) adult-oriented entertainment establishments. States must report to Health and Human Services the steps they have taken to implement such policies and practices by February 22, 2014.**

Executive Order (EO) S-09-10, issued June 24, 2010, directed CDSS, in part, to take all necessary steps to ensure that CalWORKs recipients may not access

state-provided cash benefits from automated teller machines (ATMs) in gambling establishments.

Subsequent to the signing of EO S-09-10, California implemented policies and procedures to prevent access to cash assistance benefits via ATMs located in fourteen different business categories as per the statute. These categories include casinos, liquor stores, retail establishments which provide adult-oriented entertainment, bail bonds, bingo halls, cruise ships, smoke shops, cannabis shops, ammunition stores, night clubs/saloons/taverns, psychic reader, racetracks, spa/massage salons and tattoo/piercing shops. Additionally, the state has worked with third party processors (TPPs) and the California Department of Justice (Bureau of Gambling Control) to ensure that deactivations occurred at casinos located on Indian reservations. The state has worked with FNS to permit access in FNS-authorized establishments because SNAP and TANF benefits are issued on the same EBT card.

In addition to the deactivation processes, the state implemented other efforts to inform EBT cardholders about restricted locations and the intended purpose of their cash assistance benefits. A letter was mailed to all EBT cardholders (in ten languages) in January 2011, informing cardholders of the types of establishments where ATM and point-of-sale (POS) deactivation would occur. The EBT Client website was also revised to include a message about restricted locations.

The CalWORKs Rights and Responsibilities (SAWS 2A SAR) form was revised to require recipients to sign an acknowledgement that CalWORKs benefits are intended to help meet the basic needs of the family, i.e., shelter, food, and clothing.

California implemented a new POS and ATM deactivation procedure that resulted in over 17,000 POS devices and ATMs being deactivated from processing EBT transactions at inappropriate locations from January 2014 to present.

California reviews its counties' cash access plans to ensure that the areas affected by the EO mandate continue to have adequate access points for cash assistance recipients. Moreover, California on a regular basis continues to monitor establishments and remove access to those businesses that meet the criteria for removal.

The state ensures that recipients of assistance have access to their benefits with minimal fees or charges. Here are some ways that recipients are provided information about surcharge free access to their cash benefits:

- Recipients can access surcharge free information on the EBT client website at www.ebt.ca.gov.

- The EBT card sleeve has been redesigned to state, “To find a free ATM location, visit the California EBT Client Website at www.ebt.ca.gov.”
- The EBT card mailer, which arrives with every new EBT card, has been redesigned to assist cardholders in finding surcharge free ATMs, including stating, “To find a complete list of free ATMs, go to the California EBT Client Website at www.ebt.ca.gov, or contact your county worker.” The definition of “surcharge” also is listed on the new EBT card mailer.
- Counties are encouraged to provide surcharge-free information to cash assistance recipients and post this information in their county offices.

The State of California works with Fidelity Information Systems (FIS) to ensure that ATM and POS deactivation does not prohibit cash-assistance recipients in the state from being able to access their benefits at locations near their homes, and where possible, without paying a surcharge fee.